

The proof of service included in Defendant's motion is undated, signed with Defendant's /s/, and indicates service to "info@gurstel.com via the court's electronic filing system." On July 22, 2026, the Court issued a notice of rejection of the Notice of Service, stating the papers do not comply with California Rules of Court 2.100 et seq, and that signatures must be original or comply with the requirements for facsimile filing. Thus, Defendant's proof of service is deficient in that it was undated, it indicates service to an email address not listed on Plaintiff's complaint, and does not include an original signature or comply with the requirements for facsimile filing.

6. CU0002183 Adventure Resort Marketing, LLC, (ARM) et al vs. B & W Resorts, Inc., dba Harmony Ridge Resort et al

Plaintiffs' unopposed motion to compel Defendants B&W Resorts, Inc. and Sinor, Sr.'s responses and further responses to special interrogatories and form interrogatories; and further responses to requests for admissions are granted. Defendants are ordered to serve code-compliant further verified responses to Form Interrogatory No. 4.1; Special Interrogatories Nos. 1, 8, 9, 11, 12, 13, 14, 15, 16, 17, 18, 34, 35, 36, 38, 40, 43, 45, 47, and 52; and Requests for Admission Nos. 3, 3*, 4, 5, 6, 10, 11, 23, 24, 25, 32, 33, 34, 37, 40, 41, 42, 43, 44, 45, 46, 53, 54, and 55 within 30 days of the date of this order. The Court awards Plaintiffs sanctions in the amount of \$2,160.00 within 30 days of the date of this order.

Form Interrogatories

Legal Standard

Under Code of Civil Procedure section 2030.300(a), a court may order a party to serve a further response to an interrogatory when the court finds that: "(1) An answer to a particular interrogatory is evasive or incomplete[;] (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate[; or] (3) An objection to an interrogatory is without merit or too general."

Upon receipt of a response, the propounding party may move to compel further response if it deems that an answer to a particular interrogatory is evasive or incomplete, an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, or an objection to an interrogatory is without merit or too general. CCP §2030.300(a). Any motion to compel further answers to interrogatories must be filed within 45 days of receipt of response unless the parties agree to extend the time in writing. CCP § 2030.300 (c). When such a motion is filed, the Court must determine whether responses are sufficient under the Code and the burden is on the responding party to justify any objections made and/or its failure to fully answer the interrogatories. *Coy v. Sup. Ct.* (1962) 58 Cal.2d 210, 220-21; *Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.

Analysis

Form Interrogatory ("FI") No. 4.1 asks for information relating to the existence of insurance coverage for the damages, claims, or actions arising out of the incidents in the complaint.

Defendants' only response was an objection the term "incident" is vague and ambiguous, and responding only to the "breach of contract" cause of action with the response, "No." Pltf. Sep. St. re Interrogatories, 3:1-5.

Thus, Defendants only provide a response related to the breach of contract cause of action, and fails to provide a response to the defamation cause of action. Defendants have also failed to provide verifications to their responses. Therefore, Plaintiffs' motion to compel a further, verified response to FI No. 4.1 is granted.

Special Interrogatories

Legal Standard

Under Code of Civil Procedure section 2030.300(a), a court may order a party to serve a further response to an interrogatory when the court finds that: "(1) An answer to a particular interrogatory is evasive or incomplete[;] (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate[; or] (3) An objection to an interrogatory is without merit or too general."

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The scope of discovery is one of reason, logic and common sense. *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1612. The right to discovery is generally liberally construed. *Williams v. Superior Court* (2017) 3 Cal.5th 531, 540. "California law provides parties with expansive discovery rights." *Lopez v. Watchtower Bible & Tract Society of N.Y., Inc.* (2016) 246 Cal.App.4th 566, 590-591. Specifically, the Code provides, "any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." Code Civ. Proc. § 2017.010; see also *Garamendi v. Golden Eagle Ins. Co.* (2004) 116 Cal.App.4th 694, 712, fn. 8 ("For discovery purposes, information is relevant if it 'might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement..."). "Admissibility is not the test and information unless privileged, is discoverable if it might reasonably lead to admissible evidence." *Id.* "These rules are applied liberally in favor of discovery, and (contrary to popular belief), fishing expeditions are permissible in some cases." *Id.*

Good cause can be met through showing specific facts of the case and the relevance of the requested information. *Associated Brewers Distributing Co. v. Superior Court of Los Angeles County* (1967) 65 Cal.2d 583, 586–587. “(T)he good cause which must be shown should be such that will satisfy an impartial tribunal that the request may be granted without abuse of the inherent rights of the adversary. There is no requirement, or necessity, for a further showing.” *Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 388. As the right to discovery is liberally construed, so too is good cause. *Id.* at 377-378. Generally, failure to assert a discovery objection in a response waives that objection later. *Stadish v. Superior Court* (1999) 71 Cal.App.4th 1130, 1140. “When discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden.” *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431.

Analysis

The Court notes the motion is unopposed.

Special Interrogatories (“SIs”) Nos. 1, 8, 9, 11, 12, 13, 14, 15, 16, 17, and 18 seek facts supporting defendants’ affirmative defenses. The responses only refer to the sufficiency of the complaint without reference to any facts. Therefore, a further response is required.

SI Nos. 43 and 45 also improperly limit Defendants responses to a one-year period. A further response is required.

SI Nos. 34, 35, 36, 38, 40, and 52 seek identification of persons and documents supporting Defendants’ contentions. Defendants’ responses state they “will supply names”, “will identify” persons, or refer to an unidentified document. Such does not sufficiently specify the information Defendants are discussing. Further responses are required.

SI No. 47 seeks identification of all third-party marketing companies hired by Defendant B&W Resorts from 2010 to 2023. Defendants object to the interrogatory as being vague, ambiguous, and unintelligible. The Court disagrees with the contention. The terms of “third-party”, “marketing companies”, and “hired by” are unambiguous and intelligible enough to allow Defendants to provide a further response.

Requests for Admission

Legal Standard

Code of Civil Procedure § 2033.010 provides that “[a]ny party may obtain discovery ... by a written request that any other party to the action admit ... the truth of specified matters of fact, opinion relating to fact, or application of law to fact” relating to any “matter that is in controversy between the parties.” Each response to a request for admission “shall be as complete and straightforward as the information reasonably available to the responding party permits” and must either object or answer, in writing and under oath, with an admission of so much of the matter as is true; a denial of so much of the matter as is untrue; or a specification of so much of the matter as the responding party is unable to admit or deny based on insufficient knowledge or information. Code Civ. Proc.

§§2033.210(a)-(b), 2033.220. “If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” Code Civ. Proc. § 2033.220(c). “If only a part of a request for admission is objectionable, the remainder of the request shall be answered” and if an objection is made to a request or part thereof, “the specific ground for the objection shall be set forth clearly in the response.” Code Civ. Proc. §2033.230.

Upon receipt of a response, a requesting party may move for a further response if it determines that an answer to a particular request “is evasive or incomplete” or if an objection to a particular request “is without merit or too general.” Code Civ. Proc. § 2033.290(a). “California law provides parties with expansive discovery rights.” *Lopez v. Watchtower Bible & Tract Society of N.Y., Inc.* (2016) 246 Cal.App.4th 566, 590-591. Specifically, the Code provides that “any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” Code Civ. Proc. § 2017.010; see also, *Garamendi v. Golden Eagle Ins. Co.* (2004) 116 Cal.App.4th 694, 712, fn. 8. “For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement...’” See *Lopez, supra*, 246 Cal.App.4th at 590-591, citing *Garamendi, supra*, 116 Cal.App.4th at 712, fn. 8. “Admissibility is not the test and information[,] unless privileged, is discoverable if it might reasonably lead to admissible evidence.” *Id.* “These rules are applied liberally in favor of discovery, and (contrary to popular belief), fishing expeditions are permissible in some cases.” *Id.* The scope of discovery is one of reason, logic and common sense. *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1612. The right to discovery is generally liberally construed. *Williams v. Superior Court* (2017) 3 Cal.5th 531, 540.

Analysis

Defendants’ responses to Requests for Admission (“RFAs”) Nos. 3, 3*, 4, 5, 6, 10, 11, 23, 24, 25, 32, 33, 37, 40, 41, 42, 43, 44, 45, 46, 53, 54, and 55 only address a portion of the requests, unilaterally limited to the one-year period prior to the filing of the complaint. Such is insufficient, and thus Defendants have refused to meaningfully respond to discovery requests that are reasonably calculated to lead to the discovery of admissible evidence. Further responses are warranted.

Sanctions

The motion was necessitated by Plaintiff’s deficient response.

The purpose of monetary sanctions is to mitigate the effects of the necessity of discovery motions and responses on the prevailing party. The Court finds an award of sanctions to compensate Defendants for reasonable expenses incurred as a result of the discovery motion is warranted under the circumstances present here.

An award of monetary sanctions must be “reasonable under the circumstances” *Mattco Forge, Inc. v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1437; Code Civ. Proc., § 2023.030(a) (monetary sanctions may be awarded to compensate a party for reasonable expenses). “The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” *Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 791.

Based on information appearing in the Avansino declaration, the monetary sanctions requested by Defendant reflect 8.2 total attorney hours to draft the discovery motion, and an anticipated 2 hours to review the opposition and prepare a reply, and attend the hearing. Avansino Decl., ¶¶ 22-24. No opposition was filed in this matter and correspondingly no reply was submitted. Thus, no award of fees on that basis is warranted. Likewise, the *prospective* time to prepare and present the motion for hearing is speculative and unwarranted based on the current procedural posture. The Court also finds the time expended by counsel to prepare the discovery motion excessive. Therefore, the Court grants sanctions in the amount of six (6) hours of work at a rate of \$350/hour, for a total of \$2,100, plus the filing fee of \$60, for a total amount of sanctions of \$2,160.00.

7. CU0002810 Daniel Dion et al vs. Dana May Dion

Plaintiff’s motion to change venue is granted. Venue shall be changed to Sonoma County, California. Plaintiffs shall have thirty (30) days to pay the statutory transfer fees to perfect the transfer to Sonoma County. If said fees are not paid within thirty (30) days of the entry of this Order, the instant case shall be dismissed.

8. CU0002546 Joann Pennington et al vs. Tahoe Forest Hospital District dba Tahoe Forest Hospital D/P SNF et al

Petitioners’ petition for relief from Government Code Section 945.4 pursuant to Government Code Section 946.6 is denied.

Legal Standard

Government Claims Presentation

“A claim relating to a cause of action for death or for injury to person or to personal property or growing crops shall be presented as provided in Article 2 (commencing with Section 915) not later than six months after the accrual of the cause of action. A claim relating to any other cause of action shall be presented as provided in Article 2 (commencing with Section 915) not later than one year after the accrual of the action.” Gov. Code § 911.2(a). “When a claim that is required by Section 911.2 to be presented not later than six months after the accrual of the cause of action is not presented within that time, a written application may be made to the public entity for leave to present that claim.” Gov. Code § 911.4(a). “The board shall grant or deny the application within 45 days after it is presented to the board.” Gov. Code § 911.6(a). “If the board fails or refuses to act on an application within the time prescribed by this section, the application shall be deemed to have been denied on the 45th day...” Gov. Code § 911.6(c).